

24STCV07475 24STCV07475

County: los-angeles

Division: Civil Law and Motion

Department: 309

Hearing date: 2026-09-15

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Case Number: 24STCV07475 Hearing Date: September 15, 2026 Dept: 309

Superior Court of California

County of Los

Angeles

DEPARTMENT 309

TENTATIVE RULING

EVERWIN INTERNATIONAL, LLC

vs.

CASELL'S HAMBURGERS DTLA,

LLC, et al.

Case

No.: 24STCV07475

Hearing Date: September 15, 2026

Plaintiff's

motion for summary judgment is GRANTED

On 3/25/2025,

Plaintiff Everwin International, LLC (Plaintiff) filed suit against Cassell's

Hamburgers DTLA, LLC and Cassell's Hamburgers, LLC (collectively, Defendants),

alleging: (1) breach of contract (lease); and (2) breach of contract (guaranty).

On

6/15/2026, Plaintiff moved for summary judgment or, in the alternative, summary adjudication of its claims.

The

motion is unopposed.

Discussion

Plaintiff

argues that summary judgment is appropriate here because no triable dispute exists as to any of its claims.

In

support, Plaintiff notes that Defendant failed to respond to any of the requests for admission (or to any other discovery) propounded on them, and its requests for admission were deemed admitted. Accordingly, Defendant has admitted that: (1) Everwin and Cassell's DTLA entered into a lease; (2) Everwin fully performed all of its obligations under the lease; (3) Cassell's DTLA breached the lease; and (4) As a result of Cassell's DTLA's breaches of the lease, Everwin has suffered damages. Moreover, Defendant has admitted that (1) Cassell's executed the guaranty; (2) Everwin fully performed all its obligations under the guaranty; (3) Cassell's breached the guaranty; and (4) As a result of Cassell's breaches of the guaranty, Everwin has suffered damages.

Accordingly,

no triable issue exists as to the material facts. The Court takes Defendant's non-opposition to be a concession to the motion on the merits.

Based

on the foregoing, Plaintiff's motion for summary judgment is granted.

It is so ordered.

Dated: September
, 2026

Hon. Jon R.

Takasugi

Judge of the

Superior Court

Parties who intend to submit on this tentative must

send an email to the court at smcdept17@lacourt.org

by 4 p.m. the day prior as directed by the instructions provided on the court

website at www.lacourt.org. If a party submits

on the tentative, the party's email must include the case number and must

identify the party submitting on the tentative.

If all parties to a motion submit, the court will adopt this

tentative as the final order. If the department

does not receive an email indicating the parties are submitting on the

tentative and there are no appearances at the hearing, the motion may be placed

off calendar. For more information, please contact the court clerk at (213)

633-0517.